

SEXUALIZED VIOLENCE PROCEDURES

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Policy Authority: Vice-President, Academic and Provost

Parent Policy: Sexualized Violence (GP 44)

1.0 PURPOSE

- 1.1 These procedures establish the processes that will be followed to respond, informally or formally, to a Report of Sexualized Violence made under the Sexualized Violence Policy ([GP 44](#)).

2.0 DEFINITIONS

- 2.1 See [Appendix A](#) to the Sexualized Violence Policy ([GP 44](#)) for definitions of words used in the policy and in these procedures.

3.0 GENERAL PRINCIPLES

- 3.1 The University will respond to a Report in an objective, fair, and timely manner. Individuals exercising their authority and discretion under these procedures will do so in conformity with the principles of procedural fairness and in accordance with relevant collective agreements or other applicable University policy or procedure, including notice requirements, timelines, and other related process issues.
- 3.2 The University will take steps, as needed, to address the safety and well-being of the Complainant.
- 3.3 A Complainant or Respondent may be accompanied by a support person and/or a representative of their Constituency Organization throughout the process under these procedures.
- 3.4 In responding to a Report, and when appropriate, efforts at problem-solving and informal resolution will be made first.
- 3.5 In all cases, efforts will be made to mitigate the impact of a substantiated Report, such as mandating corrective action(s), implementing actions to reduce the opportunity for recurrence, and taking steps to restore a respectful working and learning environment.

4.0 IMMINENT RISK - CONTACT POLICE AND CAMPUS PUBLIC SAFETY

- 4.1** Any member of the University Community who believes they are being impacted by Sexualized Violence and who have concerns about active or imminent acts or threats of violence, or concerns about safety, security, or emergency, should immediately contact the police and inform Campus Public Safety.

5.0 HOW TO REPORT SEXUALIZED VIOLENCE

- 5.1** A Survivor who has experienced Sexualized Violence by another member of the University Community may choose to Report the Sexualized Violence to the Sexual Violence Support and Prevention Office with the intention of initiating a process under section 8.5 of the policy. A Report is not the same as a Disclosure under section 7 of the policy. A Disclosure normally does not initiate an investigation or other process.
- 5.2** A Survivor may make a Report to the Sexual Violence Support and Prevention Office alone or with assistance of a support person of their choice.
- 5.3** Reporting Sexualized Violence to the University will follow the details outlined in section 8.0 of the policy.

6.0 ANONYMOUS ALLEGATIONS OF SEXUALIZED VIOLENCE

- 6.1** The University's ability to act upon an anonymous allegation of Sexualized Violence is very limited. The University will consider anonymous allegations to determine whether there is evidence of a significant risk to the health or safety of members of the University Community; to identify the need for education and training in impacted areas, and; to identify behavioural patterns and organizational culture issues that require addressing from unit or departmental leadership.

7.0 UNIVERSITY'S PROCESS FOR RESPONDING TO A REPORT ABOUT A STUDENT'S CONDUCT

- 7.1** Where the Report is about a Respondent who is a Student, the Student Conduct Policy ([S 10.05](#)) will apply and the Office of Student Support, Rights and Responsibilities will respond to the Report in accordance with the processes and procedures under the Student Conduct Policy ([S 10.05](#)).
- 7.2** If it is determined that Sexualized Violence has occurred, the Respondent will be held accountable and any corrective measures or disciplinary sanctions will be imposed pursuant to the Student Conduct Policy ([S 10.05](#)).

8.0 UNIVERSITY'S PROCESS FOR RESPONDING TO A REPORT ABOUT OTHERS

- 8.1** Where a Report is about the conduct of a person who is not a Student and not a University employee, the Responsible Office will respond to it in a manner that is generally analogous with the following procedures.

9.0 UNIVERSITY'S PROCESS FOR RESPONDING TO A REPORT ABOUT AN EMPLOYEE'S CONDUCT

- 9.1 Where the Report is about the conduct of an employee of the University, the Responsible Office will respond to the Report in accordance with any relevant collective agreement or other applicable University policy or procedure, including notice requirements, timelines, and other related process issues.
- 9.2 Where the Report is about an employee of the University, the Responsible Office will:
- 9.2.1 acknowledge receipt of the Report;
 - 9.2.2 assess the risk to the Complainant, the Respondent, or other members of the University Community, with reference to the Response to Violence and Threatening Behaviour Policy ([GP 25](#));
 - 9.2.3 access the Report, to determine whether the alleged conduct appears to meet the definition of Sexualized Violence;
 - 9.2.4 inform the office responsible for the Complainant (based on the Complainant's affiliation with the University) that a Report has been received and will consult or involve that office in addressing the matter, as appropriate; and
 - 9.2.5 directly, or through the office responsible for the Complainant:
 - a. inform the Complainant of their right to be accompanied by a support person and to have a member of the Constituency Organization present throughout all processes in these procedures; and
 - b. meet with the Complainant about the Report.
 - 9.2.6 determine the Respondent's Supervisor and inform the Respondent's Supervisor that a Report has been received;
 - 9.2.7 provide advice, guidance, and support to the Respondent's Supervisor in addressing the Report.
 - 9.2.8 directly, or through the Respondent's Supervisor:
 - a. inform the Respondent that a Report has been received;
 - b. inform the Respondent's Constituency Organization of the Report when required by a collective agreement;
 - c. inform the Respondent of their right to be accompanied by a support person and to have a member of their Constituency Organization present throughout all processes in these procedures; and
 - d. meet with the Respondent about the Report.

10.0 INTERIM MEASURES

- 10.1 It may be necessary to take interim measures to mitigate risk or to mitigate the impact of the Respondent's alleged conduct while a Report is being considered, resolved, investigated, or determined. Such measures will be precautionary and are expressly non-disciplinary.
- 10.2 The Responsible Office may impose interim measures on the Respondent. Interim measures will be reassessed on a weekly basis.
- 10.3 Interim measures may include, but are not limited to, the following examples:
 - 10.3.1 the exclusion of individual from all or any part of the University campuses;
 - 10.3.2 limiting proximity or contact to specific individuals;
 - 10.3.3 limiting participation in University activities;
 - 10.3.4 limiting the use of the University's information and communication technology; or
 - 10.3.5 requiring a person to meet regularly with designated members of the University Community.

11.0 INFORMAL RESOLUTION OF A REPORT

- 11.1 When appropriate, directly or through the Respondent's Supervisor, the Responsible Office will work collaboratively with the Complainant, the Respondent, and as relevant, their respective managers or Supervisors, Constituency Organizations, or others, to determine an informal resolution to the Report.
- 11.2 An informal resolution process does not result in a determination of whether the policy has been breached. Taking into account the safety, comfort, and well-being of the Complainant, the focus of an informal resolution process is to find an acceptable resolution of the Report. Examples of internal University processes for informal resolution are:
 - 11.2.1 an apology;
 - 11.2.2 an educational conversation with the Respondent;
 - 11.2.3 the Complainant communicating to the Respondent that the Respondent's behaviour is unacceptable;
 - 11.2.4 a facilitated conversation between the Complainant and the Respondent; or
 - 11.2.5 mediation.
- 11.3 If no resolution is reached through informal resolution process, or where such processes are not appropriate, the Responsible Office may initiate an investigation.

12.0 INVESTIGATION OF A REPORT

- 12.1 The Responsible Office will determine whether and how to investigate the Report, including whether to investigate it internally or whether the investigation will be undertaken by an external investigator. The Responsible Office will communicate its decision to both the Complainant and the Respondent in writing, with reasons.
- 12.2 Where more than one Report has been made about a Respondent, the Responsible Office may decide that the Report will be investigated together.
- 12.3 All investigations of an employee of the University under these procedures must:
 - 12.3.1 be undertaken promptly and diligently, and be as thorough as necessary, given the circumstances;
 - 12.3.2 be objective, and be fair and impartial to both the Complainant and the Respondent when evaluating the allegations;
 - 12.3.3 comply with all relevant provisions in any applicable collective agreement or policy, including notice, timelines, and other process requirements;
 - 12.3.4 be sensitive to the interests of all parties involved and maintain confidentiality to the extent possible under the circumstances; and
 - 12.3.5 be focused on finding facts and evidence, which includes interviewing the Complainant, the Respondent, witnesses, and such other persons as the investigator determines might have relevant information, as well as obtaining and reviewing any documents that the investigator considers may contain relevant information.
- 12.4 Upon the conclusion of an investigation, the investigator will prepare a written report (“Investigator’s Report”) in a manner that facilitates compliance with the access to information and protection of privacy provisions of the *Freedom of Information and Protection of Privacy Act* (“FIPPA”).
- 12.5 The investigator will submit the Investigator’s Report to the Responsible Office for the Respondent.
- 12.6 The Responsible Office will provide the Investigator’s Report to both the Complainant and the Respondent (redacted as required for FIPPA compliance).
- 12.7 Where an external investigator conducts the investigation, the Guidelines in Appendix C will apply.

13.0 DECISION AND CORRECTIVE MEASURES

- 13.1 When the Respondent is an employee of the University:

- 13.1.1 The Responsible Office will provide the Investigator's Report to the Respondent's Supervisor.
- 13.1.2 The Respondent's Supervisor will read and consider the Investigator's Report.
- 13.1.3 If the Investigator has not been directed to do so, the Respondent's Supervisor will determine whether the Policy has been violated and if so, whether disciplinary measures will be imposed.
- 13.1.4 The Respondent's Supervisor will determine the appropriate corrective measures or disciplinary sanctions applicable to the Respondent.
- 13.1.5 Where the Respondent is covered by a collective agreement or other relevant employment policy, any discipline will be determined and imposed consistent with the terms of that agreement or policy.
- 13.2 Examples of disciplinary sanctions include but are not limited to:
 - 13.2.1 Letter of apology;
 - 13.2.2 Mandated education or counselling;
 - 13.2.3 Restriction on contact;
 - 13.2.4 Restriction related to accessing buildings or parts of the University or certain activities;
 - 13.2.5 Relocation in or eviction from University owned and/or operated housing;
 - 13.2.6 Suspension from the University for a defined period or permanently;
 - 13.2.7 Change of work assignment; or,
 - 13.2.8 Suspension from work for a set time with or without pay.

14.0 RESTORATIVE MEASURES

- 14.1 In all cases where it is determined that a violation of the Sexualized Violence Policy (GP 44) has occurred, the University will make efforts to mitigate the impact of the incident(s) by taking actions and implementing measures to reduce the opportunity to recurrence and to restore a respectful working and learning environment.

15.0 RETALIATION

- 15.1 Retaliation is unacceptable and prohibited conduct that will be taken seriously by the University and may result in discipline. An allegation about Retaliation can be made at any time.
- 15.2 A Student who has concern about Retaliation may choose to contact the Sexual Violence Support and Prevention Office, the Office of Student Support, Rights and Responsibilities, the Ombudsperson, or their Constituency Organization for information, guidance, and support. Depending on the nature of the Retaliation. A Student may choose to report the Retaliation to the

University by making a Report under the Sexualized Violence Policy ([GP 44](#)), the Bullying and Harassment Policy ([GP 47](#)), the Human Rights Policy (GP 18), the Student Conduct Policy ([S 10.05](#)) which will be referred to the appropriate Responsible Office for action.

- 15.3 A University employee who has a concern about Retaliation may choose to Disclose to their immediate manager or supervisor, or to the Sexual Violence Support and Prevention Office, or to their Constituency Organization, for information, guidance, and support. Depending upon the nature of the Retaliation, the employee may choose to report to the University by making a Report under the Sexualized Violence Policy ([GP 44](#)), the Bullying and Harassment Policy ([GP 47](#)), the Human Rights Policy ([GP 18](#)), the Student Conduct Policy ([S 10.05](#)) which will be referred to the appropriate Responsible Office for action.
- 15.4 Where a Report involving an allegation of Retaliation is received, the Responsible Office (as determined by the Respondent's affiliation with the University) will normally respond to and manage it in the same way the Responsible Office responds to and manages other Reports made under these procedures.
- 15.5 The University reserves the right to address an allegation of Retaliation under any University policy, process, or collective agreement, or by any external process that the University deems relevant and appropriate to the circumstances.

16.0 RELATED LEGAL, POLICY AUTHORITIES AND AGREEMENTS

- 16.1 The legal and other University Policy authorities and agreements that may bear on the administration of this policy and may be consulted as needed include but are not limited to:
- 16.1.1 [University Act, R.S.B.C. 1996, c. 468](#)
 - 16.1.2 [Freedom of Information and Protection of Privacy Act, R.S.B.C. 1996, c. 165](#)
 - 16.1.3 [Sexual Violence and Misconduct Policy Act, S.B.C. 2016, c. 23](#)
 - 16.1.4 Student Conduct Policy ([S 10.05](#))
 - 16.1.5 Human Rights ([GP 18](#))
 - 16.1.6 Bullying and Harassment Policy ([GP 47](#))
 - 16.1.7 Response to Violence and Threatening Behaviour ([GP 25](#))
 - 16.1.8 Fair Use of Information and Communications Technology ([GP 24](#))
 - 16.1.9 Conflict of Interest and Conflict of Commitment Policy ([GP 37](#))
 - 16.1.10 SFU's Information Policies ([I 10](#))
 - 16.1.11 Residence and Housing Handbook and Residence licence agreement
 - 16.1.12 Employee collective agreements and relevant human resources policies